

Orphia v Orrel [2025] DIFC SCT 133

SEPTEMBER 08, 2025 SCT - JUDGMENTS AND ORDERS

Claim No: SCT 133/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

ORPHIA

Claimant/Applicant

and

ORREL

Defendant/Respondent

ORDER WITH REASONS OF H.E. JUSTICE ANDREW MORAN

UPON reviewing the Judgment of H.E. Justice Nassir Al Nasser (the “Judge”) dated 11 July 2025 (the “Judgment”)

AND UPON reviewing the Claimant’s Appeal Notice dated 25 July 2025 seeking permission to appeal the Judgment (the “Application”)

AND UPON considering the documents and submissions filed by both parties and recorded on the case file

AND PURSUANT TO the Rules of DIFC Courts (the “RDC”)

IT IS HEREBY ORDERED THAT:

1. The Application is refused.
2. The Applicant may not request that this decision be reconsidered at a hearing

3. The Applicant shall bear her own costs of the Application.

Issued by:

Delvin Sumo

SCT Judge and Assistant Registrar

Date of Issue: 8 September 2025

At:1pm

SCHEDULE OF REASONS

1. By an Appeal Notice, including the required Application for Permission to Appeal, issued on 25 July 2025 (the “Application”), the Claimant Applicant and intending Appellant, Orphia, seeks permission to appeal the Judgement of H.E. Justice Nassir Al Nasser sitting in the Small Claims Tribunal (the “SCT” or the “lower court”), of 11 June 2025.

2. The Judgment was made dismissing all the claims for relief brought by the Claimant against the Defendant, while upholding the Defendant’s counterclaim seeking the re-payment of an outstanding amount of a housing loan, ex gratia payment and the DEWS January contribution.

3. By his Judgment, the learned Judge ordered as follows:

“1. The Claim shall be dismissed.

2. The Claimant shall pay the Defendant the sum of AED 179,646.90.

3. The Claimant shall pay the Defendant the DIFC Courts’ filing fee in the sum of AED 3,592.93.”

4. Under Rule 53.87 of the Rules of the Dubai International Financial Centre Courts 2014 (the “RDC”), the “Court”, meaning the Court to which an appeal is made, will allow an appeal where the decision of the lower court was:

“ (1) wrong;

(2) unjust because of a serious procedural or other irregularity in the proceedings; or

(3) wrong in relation to any other matter provided for or under any law.”

5. By RDC 53.89, an application for permission to appeal a decision of the SCT, must be made to the Court of First Instance in a particular form, and under RDC 53.91, permission to appeal may only be granted by me as a judge of the Court of First Instance:

“where:

(1) the Court considers that the appeal would have a real prospect of success; or

(2) there is some other compelling reason why the appeal should be heard.”

6. Application of that test, or satisfaction that its requirements have been met, obviously requires a prospective inquiry and assessment. In short, an applicant/intending appellant must show that there is a real (i.e. a realistic as opposed to a fanciful) prospect of persuading an Appeal Court that the judge

of first instance, in the Small Claims Tribunal, was wrong in what he decided. This requirement must be satisfied by the grounds of appeal advanced and the written submission showing that the judge erred in his findings and decision.

7. In this case, the Applicant has advanced three grounds of appeal as the basis of her application for permission to appeal the Judgment.

8. I have considered them in detail (and the underlying materials placed before the Judge), and they may be shortly summarised as follows.

9. In her first ground, the Applicant submitted that *“the judge has incorrectly concluded that the outstanding housing loan liability is valid and enforceable”*. The Claimant explained that the Respondent’s internal practice involved issuing a lump sum advance repaid in monthly instalments. The Claimant submitted that the Judge failed to consider these repayments, as evidenced by the bank statements and invites the court to review them to verify that no outstanding amount remains.

10. In her second ground, the Applicant submits that *“the judgment erred in its application of the waiver/release clauses in the Acknowledgement and Release Agreement”*, contending that the waiver was not validly executed, as the Claimant was not given a genuine opportunity to seek independent legal advice, and there was no mutual understanding that the matter was settled. She argued that the exclusion of statutory entitlements under DIFC Employment Law was therefore unlawful and should be addressed on appeal.

11. In her third ground, the Applicant submitted that *“the SCT’s reliance on one of the Loan Advance Documents, which appears to have been forged, is a grave error”*, adding that the document does not bear her signature and was improperly accepted as evidence. She submitted that she had followed the standard Loan Advance procedure with properly executed documents and contended that this procedural error undermined the validity of the claims. She also asserted that she had initiated a criminal complaint against the Respondent for forgery.

12. In my judgment, the three grounds of appeal advanced by the Applicant are all entirely without merit, and it is therefore impossible to conclude that an appeal would have any realistic prospect of success. There is no other compelling reason why the appeal should be heard.

13. My reasons for this determination are as set below and are largely extracted in summary from the Respondent’s “Response to Appellant’s Application for Permission to Appeal” dated 14 August 2025 (the “Response”), which document contains a powerful and convincing exposition of the lack of any merit in this application or any appeal.

14. Before expressing those reasons, I begin by dismissing the Respondent’s procedural argument for dismissing the Application at paragraphs 18-21 of the Response. Whilst all that is there said about the Applicant’s breach of the Rules, and the consequentially foreshortened opportunity for the Respondent to respond, is correct; the assertion that this, *“has resulted in the Respondent being prejudiced by not being provided with sufficient time to prepare an adequate response to the Permission to Appeal”*, is

not made out – indeed it is completely confounded by the content, comprehensiveness and quality of the Response to the Application it has produced. It has plainly suffered no prejudice whatsoever in its ability to respond.

15. As for the Applicant's first ground of appeal, I am satisfied there was abundant evidence, including from the Applicant's own submissions and assertions, that outstanding amounts due under the Housing Loan were re-payable by the Applicant to the Respondent upon termination of her employment. The Applicant's assertion that the *'Judgment fails to consider that monthly repayments were indeed made by me, as evidenced by the bank statements, which were not properly scrutinized'*, is wholly unsubstantiated.

16. I accept the Respondent's submission that it is incorrect to state that the Judgment failed to consider the monthly repayments – this did occur, which led to only the Amount Owed being repayable to the Respondent and not the entire loaned amount. It would be for the Applicant to provide and point to entries in any bank statements substantiating her assertion that she has repaid any portion of the Amount Owed or dispute the figures included in the Judgment, and she has signally failed to do this before the Judge or in her Application. In addition, there was nothing whatsoever before the Judge to validate the assertion now made that "the Housing Loan was ongoing" beyond termination of the Applicant's employment, and to the contrary, incontrovertible contractual provisions to the effect that any outstanding balance was repayable upon termination of her employment. The Judge cannot be faulted in his conclusion on this issue, and this first ground of appeal is manifestly lacking in merit for all of the reasons advanced by the Respondent.

17. As for the second ground of appeal, it is sufficient for me to record that its elements are entirely contradicted by the terms of the waiver/release which the Applicant signed, the plain falsity of the assertion that the Applicant was not afforded a genuine opportunity to seek legal advice prior to signing and the chronology of the material events in paragraph 29 c. of the Response. The Judge was therefore fully entitled to conclude that the Acknowledgement and Release satisfy the provisions of Article 11(b)(i) of the DIFC Employment Law and was therefore enforceable and lawful, including by virtue of Article 11(2) of the DIFC Employment Law.

18. The Judge was also entitled to conclude that the Appellant was in breach of the Acknowledgement and Release by bringing the Claim; and to hold as he did that, *"The Claimant breached the Acknowledgement and Release Agreement by bringing a claim against the Defendant after she voluntarily waived her rights. Therefore, the Defendant is entitled to claim the Ex-gratia payment paid to the Claimant in the sum of AED 103,284"* [paragraph 39 of the Judgement]. The Applicant received that amount and became entitled to it, only on the terms of the Acknowledgement and Release, which she breached in bringing this claim. It is impossible to argue that the Judge was wrong to conclude she should repay it. She is entirely the author of her own misfortune in that respect.

19. Finally, as to the third ground, there plainly was no *"grave error"* committed by the Judge in his reliance on the correct Loan Advance Documents ultimately placed before him, as explained by the Respondent in paragraphs 31-32 of the Response.

20. As this Application is, for the reasons given, totally without merit; and it is impossible to see how any of the grounds might be substantiated or improved at a hearing; it is appropriate for the Court to make, and it does make, an order under RDC 53.99 that the Applicant may not request this decision to be reconsidered at a hearing. Accordingly, the Court has made an order to that effect.